

## **TENTATIVE RULINGS**

**DEPT C28**

**Judge Thomas S. McConville**

**June 22, 2026 at 2:00 p.m.**

**Court Reporters:** Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

**Tentative rulings:** The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

**Submitting on tentative rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

**Non-appearances:** If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 436, 442, fn. 1.)

**Appearances:** Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

**Public Access:** The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

**Arguments:** The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

**No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.**

| #   | Case Name                                                  | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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| 50. | <p>Nguyen v. Lucatero</p> <p>2025-01450476</p>             | <p><b><u>Attorney Hoan N. Nguyen of Wow Law Group, APC's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen</u></b></p> <p>Attorney Hoan N. Nguyen of Wow Law Group, APC's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen is DENIED as MOOT.</p> <p>A substitution of attorney has been filed indicating that Plaintiff has consented to the substitution of Bobbi Bolton, Esq. of Pacific Coast Injury Law Center for Hoan N. Nguyen of Wow Law Group, APC as Plaintiff's counsel of record. (ROA 64.)</p> <p><b><u>Attorney Richard Kwak, Esq. of Pacific Coast Injury Law Center's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen</u></b></p> <p>Attorney Richard Kwak, Esq. of Pacific Coast Injury Law Center's Motion to be Relieved as Counsel of Record for Plaintiff Mai T. Nguyen is GRANTED.</p> <p>Service on Plaintiff and counsel of the other parties was proper, and all required forms were filed pursuant to California Rules of Court, Rule 3.1362.</p> <p>Accordingly, Richard Kwak, Esq. and Pacific Coast Injury Law Center are relieved as counsel of record for Plaintiff Mai T. Nguyen.</p> <p>The order will take effect once moving attorney files proof of service of this Order on Plaintiff Mai T. Nguyen.</p> <p>Moving attorney to provide notice of this ruling.</p> |
| 51. | <p>Brown v. City of Newport Beach</p> <p>2025-01476699</p> | <p>Defendant City of Newport Beach's demurrer to Plaintiff Craig Brown's Second Amended Complaint ("SAC") is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).)</p> <p>Defendant renews its demurrer to Plaintiff's Third Cause of Action for Failure to Provide Reasonable Accommodation, which the court previously found to be inadequately pleaded. (ROA 51.) Plaintiff's SAC added paragraph 81, which reads: "Plaintiff requested, as a reasonable accommodation (and per Defendant's mandated duty to investigate) and in order for Plaintiff to return to workplace free from retaliation and harassment, that Defendant conduct an investigation related to his disclosures of unlawful conduct. Plaintiff also requested, as a reasonable accommodation, that he be reassigned to a</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

| #   | Case Name                                             | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
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|     |                                                       | <p>position or department that was not under the Human Resources department's influence. Defendant refused these requested reasonable accommodations. Instead, Defendant made clear to Plaintiff that it was simply "going through the motions" by holding these meetings but that no actual reasonable accommodation would be offered."</p> <p>Read as a whole, Plaintiff's SAC alleges he suffers from an adjustment disorder with mixed anxiety and depressed mood, which Plaintiff alleges could be accommodated by being reassigned to a different supervisor. These allegations are legally insufficient to state a claim for failure to provide a reasonable accommodation. See <i>Higgins-Williams v. Sutter Medical Foundation</i> (2015) 237 Cal.App.4th 78, 85 ("[a]n employee's inability to work under a particular supervisor because of anxiety and stress related to the supervisors's standard oversight of the employee's job performance does not constitute a disability under FEHA.")</p> <p>The demurrer is SUSTAINED, with one final opportunity for Plaintiff to attempt to plead a cause of action for Failure to Provide Reasonable Accommodation. Plaintiff has already had three opportunities to plead such a cause of action. Plaintiff may have one final opportunity to attempt to address the deficiencies in this cause of action.</p> <p>The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28.</p> <p>Defendant shall provide notice of this ruling.</p> |
| 52. | <p>Bahra v. County of Orange</p> <p>2026-01542077</p> | <p>Defendant County of Orange's unopposed demurrer to the complaint of plaintiffs Kevin Bahra and Daniel Johnson is SUSTAINED.</p> <p>Plaintiffs have failed to allege a dangerous or defective condition of defendant's property for purposes of Government Code section 835. "A claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition. A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." <i>Summerfield v. City of Inglewood</i> (2023) 96 Cal. App. 5th 983, 994 (citations omitted). The complaint fails to make these allegations.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

| #   | Case Name                                                | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
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|     |                                                          | <p>Plaintiffs are granted ten days leave to amend.</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 53. | <p>Morrow v. General Motors LLC</p> <p>2025-01465502</p> | <p>Defendant General Motors LLC's Demurrer to the First Amended Complaint is OVERRULED.</p> <p>GM demurs to the fourth and fifth causes of action.</p> <p><b>Fourth Cause of Action – Breach of the Implied Warranty of Merchantability</b></p> <p>"The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Company</i> (2020) 46 Cal.App.5th 493, 495.) Courts have applied Commercial Code section 2725 to claims arising from an implied warranty. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305-1306.)</p> <p>The future performance exception articulated within Commercial Code section 2725, subdivision (2), "must be narrowly construed." (<i>Cardinal Health 301, Inc. v. Tyco Electronics Corp.</i> (2008) 169 Cal. App. 4th 116, 130.) The exception "applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time." (<i>Ibid.</i>) Consequently, the California Court of Appeal has interpreted and applied the future performance exception almost exclusively in the express warranty context. (<i>Id.</i> at pp. 129-131 (citing cases)). To emphasize this point, the <i>Cardinal Health</i> court stated that, "[b]ecause an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held [that] it is not a warranty that explicitly extends to future performance of the goods." (<i>Id.</i> at pp. 133-134.)</p> <p>Notably, however, "[o]ne innovation of the Song-Beverly Act is an express provision for a duration of the implied warranty of merchantability." (<i>Mexia</i> 174 Cal.App.4th at 1304.) With respect to Song-Beverly Act claims, "[t]he duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable." (Civ. Code, § 1791.1, subd. (c).)</p> <p>Based on the above, the reasoning articulated in <i>Cardinal Health</i> does not appear applicable: In the context of a Song-Beverly claim, an implied warranty has a "specific and defined period of time." The Fourth Cause of Action accrued "when</p> |

| # | Case Name | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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|   |           | <p>the breach [was] or should have been discovered.” (Cal. U. Com. Code, § 2725, subd. (2).)</p> <p>“A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (<i>E-Fab, Inc. v. Accountants, Inc. Services</i> (2007) 153 Cal.App.4th 1308, 1319.)</p> <p>Here, Plaintiff obtained the vehicle on October 3, 2019. Thereafter, Plaintiff experienced defects and non-conformities in the vehicle including, but not limited to, engine and transmission issues. (FAC, ¶ 11-13.) From November 11, 2022, to May 9, 2025, Plaintiff presented her vehicle to Defendant’s authorized repair facilities. (Ibid.) As to each of these instances, the FAC alleges the facility “advised the Vehicle had been repaired and was working as designed.” (Ibid.)</p> <p>Plaintiff alleges she had no way of uncovering Defendant’s deception regarding the repairs because Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with the vehicle. (FAC, ¶ 14.)</p> <p>Additionally, regardless of whether delayed discovery is applied, the repair allegations support tolling. Commercial Code section 2725 makes clear that this section “does not alter the law on tolling of the statute of limitations...” (Cal. U. Com. Code, § 2725, subd. (4).)</p> <p>“Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made.” (<i>Cardinal Health, supra</i>, 169 Cal.App.4th at pp. 133-134; See also <i>Aced v. Hobbs-Sesack Plumbing Co.</i> (1961) 55 Cal.2d 573, 585 [“The statute of limitations is tolled where one who has breached a warranty claims that the defect can be repaired and attempts to make repairs.”].)</p> <p>In this case, the FAC alleges consistent repairs and representations that defects were cured between November 11, 2022, and May 9, 2025. Such repair allegations support tolling. Because the initial complaint was filed within four years of the first and last repair attempt, the complaint is timely.</p> |

| # | Case Name | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
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|   |           | <p>Accordingly, the demurrer to the fourth cause of action is OVERRULED.</p> <p><b>Fifth Cause of Action – Fraudulent Inducement-Concealment</b></p> <p><b>a. Statute of limitations</b></p> <p>Code of Civil Procedure section 338(d) provides that an action for fraud must be brought within three years. Such a claim does not accrue, however, “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc. § 338(d).)</p> <p>Where a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory. (<i>Mills v. Forestex Co.</i> (2003) 108 Cal.App.4th 625, 641.)</p> <p>“When a plaintiff alleges the fraudulent concealment of a cause of action, the same pleading and proof is required as in fraud cases: the plaintiff must show (1) the substantive elements of fraud, and (2) an excuse for late discovery of the facts. [Citation.] With respect to ... the belated discovery, the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry.” (<i>Community Cause v. Boatwright</i> (1981) 124 Cal.App.3d 888, 900.)</p> <p>Here, the FAC alleges that on October 3, 2019, Plaintiff entered into a warranty contract with GM. (FAC, ¶ 6.) Plaintiff filed suit against GM on May 10, 2025. As such, unless Plaintiff alleges sufficient facts in support of delay discovery or tolling, the three-year statute of limitations for this claim expired before the original Complaint was filed.</p> <p>Defendant argues the FAC does not include any allegations that justify their late filing. The FAC alleges “[d]effects and nonconformities to warranty manifested themselves” during the “express warranty period.” (FAC, ¶ 19.) Therefore, Plaintiff cannot sustain the burden of demonstrating that they did not discover with reasonable diligence the actions giving rise to their claim within the applicable limitations period.</p> <p>However, as argued by Plaintiff, even though Plaintiff’s vehicle was showing signs of nonconformity earlier, Plaintiff only discovered Defendant’s fraudulent conduct of selling defective</p> |

| # | Case Name | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
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|   |           | <p>engines shortly before the complaint was filed. Up until that time, Defendant had represented that either there was nothing wrong with the vehicle or it had been repaired.</p> <p>Accordingly, the fifth cause of action is not patently barred by the statute of limitations based on the allegations in the FAC and the demurrer is OVERRULED on this ground.</p> <p style="text-align: center;"><b>b. Failure to plead sufficient facts to state a cause of action for fraud</b></p> <p>"[T]he necessary elements of a concealment/suppression claim consist of (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship." (<i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843 [cleaned-up].)</p> <p>In <i>Dhital</i>, the court found a cause of action for fraudulent concealment was sufficiently pled where the "plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car." (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.)</p> <p>Similarly, Plaintiff alleges engine defects caused "unsafe conditions in vehicles equipped with the 3.6L engine, including, but not limited to, the engine losing power while driving." (FAC, ¶ 74.) These conditions presented a safety hazard because they severely affected the driver's ability to control the vehicle, and substantially increased the likelihood that the engine would fail, lose power, and/or cut off during operation, thereby resulting in accidents involving property damage, personal injury and even death. (<i>Ibid.</i>)</p> <p>The FAC further alleges Defendant had knowledge of such defects prior to Plaintiff acquiring the vehicle through sources not available to consumers such as Plaintiff, including but not limited to pre-releasing testing data; early consumer complaints about the engine defect; dealership repair orders; testing conducted by GM in response to these complaints; as</p> |



| # | Case Name | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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|   |           | <p>well as other internal sources of information possessed exclusively by GM and its agents. (FAC, ¶ 76.)</p> <p>Prior to purchasing the vehicle, Plaintiff reviewed GM's marketing and advertising materials, viewed GM's vehicle specific window sticker, and took the vehicle for a test drive. At no time prior to the purchase did GM reveal the dangers with the engine. (FAC, ¶¶ 9, 78.)</p> <p>Defendant contends Plaintiff failed to allege a transactional relationship that would give rise to a duty to disclose. This argument was rejected in <i>Dhital</i>, supra. The court in <i>Dhital</i> held that a fraud claim was not barred even though there was no direct relationship between the buyer and manufacturer, because the buyer purchased from an authorized dealership, the manufacturer backed the vehicle with an express warranty, and the manufacturer's authorized dealerships were its agents for purposes of vehicle sales. (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.) All such facts are alleged in the FAC.</p> <p>Accordingly, Plaintiff has stated adequate facts to support her claim for fraudulent concealment and inducement, and the demurrer is OVERRULED on this ground.</p> <p style="text-align: center;"><b>c. Economic Loss Rule</b></p> <p>The economic loss rule "precludes recovery for purely economic loss due to disappointed expectations, unless the plaintiff can demonstrate harm above and beyond a broken contractual promise. Conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law." <i>Robinson Helicopter Co. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 988-989 (also noting prior application of economic loss rule to negligence cause of action).</p> <p>Defendant relies on <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1 in support of its economic loss argument. However, <i>Rattagan</i> is not a Song-Beverly case. Moreover, it was reframed as specifically about fraud-in-the-performance, and Plaintiffs have alleged fraud-in-the-inducement, so the fraud-in-the-performance test in <i>Rattagan</i> does not apply.</p> <p><i>Dhital</i> is the appropriate precedent here, as it specifically addressed fraudulent inducement by concealment claims as well within the context of the Song-Beverly Act. <i>Dhital</i> held that the economic loss rule does not bar claims for fraudulent</p> |

| #   | Case Name                                                                                                        | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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|     |                                                                                                                  | <p>inducement, including, as alleged here, through fraudulent concealment. (Id., p. 843.)</p> <p>Accordingly, the demurrer on this ground is OVERRULED.</p> <p>The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28.</p> <p>Defendant shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 54. |                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 55. | <p>Orthopaedic Specialty Institute Medical Group of Orange County v. OCA Care of CA LLC</p> <p>2025-01483911</p> | <p>Plaintiff Orthopaedic Specialty Inst. Medical Group's Motion for Leave to file a First Amended Complaint is GRANTED.</p> <p>Plaintiff seeks leave to amend the complaint to add new allegations against the presently named Defendant as well as additional Defendants to be added.</p> <p>Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...." (Code Civ. Proc., § 473, subd. (a).) A motion for leave to amend must also comply with California Rules of Court, Rule 3.1324.</p> <p>Here, the declaration of Kathryn B. Salmond satisfies the requirements of Rule 3.1324.</p> <p>There is currently no trial date set.</p> <p>Accordingly, the court exercises its discretion and the motion is GRANTED. Plaintiff is ordered to file and serve the proposed First Amended Complaint within 30 days.</p> <p>Plaintiff shall give notice of this ruling.</p> |
| 56. | <p>Bufkin v. Vista Del Rio Housing Partners, LP</p> <p>2024-01406584</p>                                         | <p>Defendant City of Orange's Motion for an Order to Depose an Incarcerated Defendant – Irvin Garcia is GRANTED. (Code Civ. Proc., §§ 1995, 1996.)</p> <p>Defendant may depose prisoner Irvin Garcia at the Theo Lacy Facility in Orange, California.</p> <p>Defendant to submit a proposed order, and to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 57. | <p>Hope Autism Therapies, LLC v. Dybnis</p>                                                                      | <p>Defendants Barbara Dybnis, individually and as trustee of the Sacha Dybnis and Barbara Dybnis Family Trust, and the Sacha Dybnis and Barbara Dybnis Family Trust's motion to compel</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

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|   | 2026-01546607 | <p>plaintiff Hope Autism Therapies, LLC to arbitrate the claims asserted in its First Amended Complaint is GRANTED.</p> <p>A party moving to compel arbitration under Code Civil Procedure Section 1281.2 must prove by a preponderance of the evidence that:</p> <ol style="list-style-type: none"> <li>1. The parties entered into a written agreement to arbitrate;</li> <li>2. One or more of the claims at issue are covered by that agreement; and</li> <li>3. The responding party refused a prior demand for arbitration under the agreement of the claims at issue.</li> </ol> <p>(Code Civ. Proc., § 1281.2; <i>Villacreses v. Molinari</i> (2005) 132 Cal.App.4th 1223, 1230.)</p> <p>If the moving party meets the above burden, the burden is shifted to the party opposing arbitration to prove unconscionability or other defenses. <i>Mar v. Perkins</i> (2024) 102 Cal.App.5th 201. Specifically, "a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." <i>Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler &amp; Mitchell</i> (2013) 219 Cal.App.4th 1299, 1308.</p> <p>The arbitration language is in an addendum attached to the lease agreement. The addendum prefaces the rest of the content by stating: "This is an addendum to the lease of Suite F and the Fenced in area, as described in the above lease agreement between Lessor..."</p> <p>The applicable arbitration language states in part:</p> <p style="padding-left: 40px;">A. ARBITRATION OF DISPUTES: Except as provided in Paragraph B below, the Parties agree to resolve any and all claims, disputes or disagreements arising under this Lease or negotiations concerning this lease, including, but not limited to any matter relating to Lessor's failure to approve an assignment, sublease or other transfer of Lessee's interest in the Lease under Paragraph 12 of this Lease, any other defaults by Lessor, or any defaults by Lessee by and through arbitration as provided below and irrevocably waive any and all rights to the contrary. The Parties agree to at all times conduct themselves in strict, full, complete and timely accordance with the terms hereof and that any attempt to circumvent the terms of this Arbitration Agreement shall be absolutely null and void and of no force or effect whatsoever.</p> |

| # | Case Name | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
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|   |           | <p data-bbox="621 306 1360 789">B. DISPUTES EXCLUDED FROM ARBITRATION:<br/>The following claims, disputes or disagreements under this Lease are expressly excluded from the arbitration procedures set forth herein: 1. Disputes for which a different resolution determination is specifically set forth in this Lease, 2. Claims relating to (a) Lessor's exercise of any unlawful detainer rights pursuant to applicable law or (b) rights or remedies used by Lessor to gain possession of the Premises or terminate Lessee's right of possession to the Premises, all of which disputes shall be resolved by suit filed in the applicable court of jurisdiction, the decision of which court shall be subject to appeal pursuant to applicable law, and 3. All claims for injunctive relief of any kind.</p> <p data-bbox="526 814 1354 982">Plaintiff argues that the addendum doesn't apply to its lease as it did not lease Suite F. Instead, plaintiff argues it leased Suite A. Plaintiff contends it had no intention to lease Suite F and therefore the addendum, specifically referring to Suite F should not be considered.</p> <p data-bbox="526 1008 1344 1285">In reply, defendants argue there are only two units at 1500 Grand Avenue: the Front Suite and the Back Suite. (Supplemental Declaration of Barbara Dybnis ("Supp. Dybnis Decl.") ¶¶ 3-5.) Plaintiff leased the Front Suite. (Lease § 1.2(a).) "Suite F" is shorthand for that Front Suite, and the addendum's companion reference to "the Fenced in area" describes the enclosed parking lot, a common area of that very property.</p> <p data-bbox="526 1310 1279 1339">The lease itself defines the premises, in part, as follows:</p> <p data-bbox="621 1365 1360 1533">Premises: That certain portion of the Project (as defined below), known as the Front suite, consisting of approximately 1953 usable square feet. ("Front Suite" and the "Premises") located at 1500 Grand Avenue, Santa Ana, CA 92701.</p> <p data-bbox="526 1558 1156 1587">There is no mention of a Suite "A" in the lease.</p> <p data-bbox="526 1612 1370 1785">Addenda can modify or supplement existing lease agreements. <i>Williams v. Atria Las Posas</i>, (2018) 24 Cal.App.5<sup>th</sup> 1048. The timing and express terms of the later agreement may demonstrate the parties' intention for it to govern their relationship.</p> <p data-bbox="526 1810 1354 1873">The enforceability analysis focuses on whether the lessee actually signed the addendum and whether it was intended to</p> |

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|   |           | <p>be part of the parties' agreement. Plaintiff's representative, Anthony Hamedi, signed the lease and initialed the addendum.</p> <p>Based on these facts, the court finds the arbitration provision applies to the parties' agreement related to the leased premises.</p> <p>Plaintiff argues that the arbitration provision does not apply to the disputes asserted in its claims against defendant.</p> <p>The central question here is whether claims sounding in misrepresentation, concealment, and bad faith fall within the scope of an arbitration clause covering disputes "arising from" the lease. Courts have consistently held that such claims are arbitrable when they are rooted in the contractual relationship. In <i>Ericksen, Arbuthnot, McCarthy, Kearney &amp; Walsh, Inc. v. 100 Oak St.</i>, (1983) 35 Cal.3d 312, the California Supreme Court held that an arbitration clause covering disputes "with respect to the provisions of this Lease" was broad enough to include a claim of fraud in the inducement, where the claim of substantive breach was totally embraced within the claim of fraud and the fraud issue was inextricably enmeshed in the other factual issues of the case. The <i>Ericksen</i> court further stated that doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration, and that in the absence of indication of contrary intent, claims of fraud in the inducement of the contract will be deemed subject to arbitration. See also <i>Victrola 89, LLC v. Jaman Props. 8 LLC</i>, (2020) 46 Cal.App.5th 337.</p> <p>Similarly, courts have also held that a broadly worded arbitration clause may extend to tort claims that arise under or from the contractual relationship, and that it has long been the rule in California that such clauses may encompass tort claims rooted in that relationship. See <i>Coast Plaza Doctors Hosp. v. Blue Cross of California</i> (2000) 83 Cal.App.4th 677.</p> <p>The court finds that the arbitration provision covers the majority of plaintiff's claims (with the exception discussed below).</p> <p>Plaintiff argues that the arbitration provision is unconscionable because it explicitly carves out unlawful detainer actions and all summary court remedies used by the landlord to secure possession, while forcing the tenant's primary statutory remedies into a cost-prohibitive arbitral forum. Plaintiff further argues that as stated in the Declaration of Anthony Hamedi filed herewith, the lease was a contract of adhesion, presented to Plaintiff on a take-it-or-leave-it basis.</p> |

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|     |                                                 | <p>To invalidate an arbitration provision, both procedural and substantive unconscionability must be present. <i>Armendariz v. Foundation Health Psychare Services, Inc.</i> (2000) 24 Cal. 4<sup>th</sup> 83, 114. The provision in the arbitration provision that exempts unlawful detainer matters from arbitration is substantively unconscionable. The court orders that provision stricken. There are no other substantively unconscionable provisions in the arbitration provision.</p> <p>The fact that the lease was offered on a take it or leave it basis presents a modicum of procedural unconscionability in the context of a commercial lease. However, as the court has stricken the only substantively unconscionable provision, plaintiff has failed to show that unconscionability prevents the enforcement of the arbitration provision.</p> <p>As quoted above, the arbitration provision carves out injunctions.</p> <p>Therefore, the court ORDERS PLAINTIFF TO ARBITRATE ALL OF ITS CLAIMS, with the exception of the Sixth Cause of Action asserting a claim under Bus. &amp; Prof. Code Section 17200 et seq. That cause of action is ORDERED STAYED pending the outcome of the arbitration.</p> <p>This action is ordered STAYED pending the outcome of the arbitration.</p> <p>The case management conference is VACATED.</p> <p>The court sets an Arbitration Review Hearing for March 8, 2027 at 9:00 a.m. in this department. Five days before the hearing, the parties are ordered to submit a joint status report.</p> <p>Defendant Dybnis to give notice of this ruling.</p> |
| 58. |                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 59. | <p>Abdallah v. Anzaldo</p> <p>2024-01399584</p> | <p>Defendant Vanessa Ferragamo Gutierrez, M.D.'s motion for summary judgment is GRANTED.</p> <p>Dr. Gutierrez has met her burden to show plaintiffs Shatha Ahmad Abdallah, Mazen Nemetallah, and Laila Nemetallah's sole cause of action for medical negligence has no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [burden]; <i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305 [elements, standard of care]; <i>Chakalis v. Elevator Solutions, Inc.</i> (2012) 205 Cal.App.4th 1557, 1572</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|     |                                              | <p>[causation]; see also Def. SSMF Nos. 1-17; Ball Decl. ¶¶ 1-21.)</p> <p>Plaintiffs have chosen not to oppose this motion and have therefore failed to meet their shifted burden to demonstrate a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; see also ROA No. 189 [notice of non-opp.] .)</p> <p>Moving party shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 60. |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 61. | Vizcarra v. Bevmó! Inc.<br><br>2023-01348855 | <p>Defendant/Cross-Complainant Canyon Plaza, Inc.'s Motion to File Summary Judgment Motion Less than 60 Days After Cross-Defendant Beverages &amp; More, Inc.'s General Appearance in this Action is DENIED.</p> <p>Defendant/Cross-Complainant's alternative request for a continuance of the trial date, a request which Cross-Defendant Beverages &amp; More, Inc. does not oppose, is GRANTED. The Trial in this matter is CONTINUED to February 1, 2027 at 9:30 a.m. in this department.</p> <p>All deadlines calculated from the date of trial which have not already passed shall be calculated from the continued trial date.</p> <p>A continuance of the trial date is necessary to permit Cross-Defendant Beverages &amp; More, Inc. an opportunity to conduct discovery so it may potentially oppose Cross-Complainant's Motion for Summary Judgment/Adjudication. The continuance also permits Cross-Complainant to remedy the defects in the timing of its Motion for Summary Judgment/Adjudication directed towards Cross-Defendant Beverages &amp; More, Inc.</p> <p>Moving Party shall provide notice of this ruling.</p> |
| 62. |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 63. |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 64. |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 65. |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
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